

		1286 [denying motion to seal due to public disclosure, but finding that normally, sealing is appropriate where “information involves confidential matters relating to the business operations of defendant” and “public revelation of these matters would interfere with its ability to effectively compete in the marketplace”].) Here, on 5/15/2026, the Court sustained Third Parties’ attorney-client privilege objections related to the documents at issue and ordered that any papers filed by Goldman containing the privileged information be stricken from the record. (ROA #226.) Thus, granting the motion to seal this information is consistent with the Court’s previous ruling, and the Court need not make additional express findings under CRC, rule 2.550(d). Accordingly, the Court ORDERS that the unredacted versions of the above-listed documents that had been filed conditionally under seal now be permanently sealed. Moving parties shall provide notice.
105	Fernandez vs. Michael Nicholas Designs 2023-01362788	Motion for Final Approval Class/PAGA Settlement Plaintiffs Monica Fernandez and Eva Zavala’s Motion for Final Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On 11/17/2023, Plaintiff Monica Fernandez, individually and on behalf of all others similarly situated, filed a class action against Defendant Michael Nicholas Designs, Inc. The operative complaint is the second amended complaint (SAC), filed on 8/26/2024 per the parties’ stipulation and court order. (ROA #42.) The SAC added Eva Zavala as a plaintiff and alleges 8 causes of action for various Labor Code wage-and-hour violations and unfair business practices. On 2/4/2025, Plaintiffs further amended the complaint to name Michael Nicholas Designs, LLC as Defendant Doe 1. (ROA #61.) On 5/23/2025, Plaintiffs filed the motion for preliminary approval. (ROA #100.) On 2/19/2026 at the second hearing on the motion, the Court granted the motion. (ROA #129.) On 3/3/2026, the Court signed the order granting preliminary approval. (ROA #134.) On 5/11/2026, the Court signed a stipulated amended order granting preliminary approval. (ROA #152.) On 8/5/2026, Plaintiffs filed the instant Motion for Final Approval of Class Action and PAGA Settlement. (ROA #173.) The motion seeks approval of the Class Action and PAGA Settlement Agreement and Class Notice and First Amendment to Class Action and PAGA Settlement Agreement (collectively with original settlement agreement, “Settlement Agreement”), which provide for the settlement of Plaintiffs’ class and PAGA claims for the non-reversionary gross settlement amount (“GSA”) of \$773,360. The GSA includes \$40,000 allocated for PAGA penalties.

The Class is comprised of 921 Class Members, defined as “all individuals who worked as non-exempt employees of Defendants Michael Nicholas Designs, LLC and/or Michael Nicholas Designs, Inc. in California at any time during the Class Period.” The Class Period is 3/23/2021 through 6/30/2025.

The settlement also includes 619 Aggrieved Employees, defined as “all individuals who worked as nonexempt employees of Defendants Michael Nicholas Designs, LLC and/or Michael Nicholas Designs, Inc. in California at any time during the PAGA Period.” The PAGA Period is 11/17/2022 through 6/30/2025.

The settlement administrator, Phoenix Settlement Administrators, reports as follows:

- On 5/14/2026, the administrator sent class notices via U.S. Mail to 921 Class Members, including 619 Aggrieved Employees .
- As of 7/26/2026:
 - Zero (0) class notices were returned to the administrator as undeliverable
 - Two requests for exclusion were received from Cory Nakanaela Kaleikau Hachten and Richard Kim.
 - Zero (0) objections and zero (0) workweek disputes were received.

Therefore, 919 or 921 (or 99.8%) of the Class is participating in the settlement.

The Court concludes that the \$773,360 settlement is fair, adequate, and reasonable, and in the best interests of the Class Members. The Court also concludes that the notice to the Class was adequate. The Court also certifies the defined Class for settlement purposes only.

The Court concludes that an attorneys’ fee award totaling \$223,008.00 or 30% of the GSA, constituting a 1.71 multiplier against the lodestar amount, is fair, adequate, and reasonable for a class and settlement of this size, including considering the action’s contingent nature and the results achieved.

The Court also concludes that litigation costs should not include overhead or nonrecoverable items such as postage. Additionally, the Court finds that Class Counsel has not properly supported its \$450 estimate for future anticipated costs with any line-item cost estimates for filing this motion, final declaration regarding distribution of settlement, service and messenger fees, and/or postage fees. Therefore, the Court deducts \$93.69 from the requested already-incurred amount attributed to postage, as well as the \$450 attributed to future anticipated costs, and awards \$11,388.82 total in costs.

The Court further concludes that a Class Representative Service Payment of \$5,000 per named Plaintiff is fair, adequate, and reasonable for a class

and settlement of this size, considering that there was nothing extraordinary about either Plaintiff's contribution to the case.

Accordingly, the Court approves the following specific awards and disbursements from the GSA:

- Attorneys' fees totaling \$232,008.00 awarded to Class Counsel, allocated as follows per counsel's fee-splitting agreement as approved by Plaintiffs:
 - 46.5% or \$107,883.72 to Haines Law Group, APC;
 - 31% or \$71,922.48 to Lidman Law, AP; and
 - 22.5% or \$52,201.8 to Michael Burgis & Associates, P.C.
- Litigation costs totaling \$11,388.32 awarded to Class Counsel Lidman Law, AP;
- Settlement administration costs of \$13,500.00 awarded to Phoenix Settlement Administrators;
- Class Representative Service Payment of \$10,000.00 total, with \$5,000.00 awarded to Plaintiff Monica Fernandez and \$5,000.00 awarded to Plaintiff Eva Zavala; and
- \$30,000.00 remitted to the Labor and Workforce Development Agency (LWDA) for its share of the PAGA penalties.

The Net Settlement Amount payable to all Class Members is \$476,463.68, including the \$10,000.00 in PAGA penalties to be distributed to the Aggrieved Employees, in accordance with the terms of the Settlement Agreement. Pursuant to the Settlement Agreement, Defendants are ordered to separately pay all employer payroll taxes owed on the wage portions of the individual settlement payments.

Within five (5) court days, Class Counsel must submit a revised Proposed Order of Final Approval and Judgment with the following revisions:

1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order.
2. The proposed order and judgment should identify the amended settlement agreement by its actual name.
3. The proposed order and judgment should reference by name and ROA number the declaration(s) to which the Settlement Agreement and any amendments thereto are attached.
4. The proposed order and judgment should remove the injunction language from ¶ 17 ("and will be permanently barred from prosecuting against Defendants any of the Released Claims pursuant to the Settlement").
5. The proposed order and judgment should state that the Court's continuing jurisdiction is pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h).
6. The proposed order and judgment should state that the settlement administrator will post a copy of the order and judgment on the website for 180 days.

		7. The proposed order and judgment should state that the Final Accounting hearing will be set for 10/14/2027 at 2:00 p.m., as this Court hears Law & Motion matters on Thursdays. 8. The proposed order and judgment should state that the settlement administrator's final report should be filed at least 16 court days before the Final Accounting hearing. Final Accounting is set for 10/14/2027, at 2:00 p.m. in Department CX102. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing date. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Class Members and all others in accordance with the Settlement Agreement, as well as the amount of unclaimed funds, if any, remitted to the State Controller's Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiffs are ordered to give notice of this ruling, including to the LWDA, and file proof of service within five (5) court days.
106	Logue vs. JHA Remediation LLC 2024-01384205	Status Conference
107	Logue vs. JHA Remediation LLC 2024-01401183	1. Motion for Approval of PAGA Settlement 2. Status Conference The Court has reviewed the supplemental materials provided by Plaintiff's Counsel and finds that with a few minor exceptions, they adequately address the previously identified issues. Accordingly, Plaintiff Corey Logue and Defendants' JHA Remediation, LLC and JHA Environmental, Inc.'s joint Motion for Approval of Representative PAGA Settlement is CONDITIONALLY GRANTED, pending the resolution of the issues identified below. This is a PAGA-only action. On 5/21/2024, Plaintiff Corey Logue filed a PAGA complaint against Defendants JHA Remediation LLC and JHA Environmental, Inc., seeking PAGA penalties for Defendants' alleged (1) failure to provide meal